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THE UNITED STATES DISTRICT COURT
DISTRICT OF UTAH

THE UNITED STATES DISTRICT COURT
DISTRICT OF UTAH

FINN FASTRE and JASON FASTRE, individually and as personal representatives of THE ESTATE OF HANS FASTRE,

Plaintiffs,

v.

WEBER COUNTY, a Utah governmental entity; ASHTON OLSEN, an individual; BRAYDON APPLE, an individual; DANIELLE ROCHELL, an individual; KYLIE KOHLER, an individual; FAITH VITAL, an individual; ASHLEY WILSON, an individual; ASHLYN MCGLONE, an individual; MADYSON FOREMAN, an individual; CHARLES SICHZ, an individual; BODEE BOWCUT, an individual; CODY WILLIAMSON, an individual; CAYDEN CHARLEY, an individual; AVERY WELLS, an individual; BEAU BROWN, an individual; MATHEW LEGAVALIER, an individual; MICHAEL CLEGG, an individual; BONNIE VITAL, an individual; EMMA NEIDERHOUSER, an individual; and DOES 1-20;

Defendants.

COMPLAINT AND DEMAND FOR JURY TRIAL

JURY DEMANDED

Tier 3

Case No. _____

Judge _____

FINN FASTRE and JASON FASTRE, individually and as personal representatives of THE ESTATE OF HANS FASTRE,

Plaintiffs,

v.

WEBER COUNTY, a Utah governmental entity; ASHTON OLSEN, an individual; BRAYDON APPLE, an individual; DANIELLE ROCHELL, an individual; KYLIE KOHLER, an individual; FAITH VITAL, an individual; ASHLEY WILSON, an individual; ASHLYN MCGLONE, an individual; MADYSON FOREMAN, an individual; CHARLES SICHZ, an individual; BODEE BOWCUT, an individual; CODY WILLIAMSON, an individual; CAYDEN CHARLEY, an individual; AVERY WELLS, an individual; BEAU BROWN, an individual; MATHEW LEGAVALIER, an individual; MICHAEL CLEGG, an individual; BONNIE VITAL, an individual; EMMA NEIDERHOUSER, an individual; and DOES 1-20;

Defendants.

COMPLAINT

Case No. _____

Judge _____

Plaintiff, for cause of action against defendants, hereby alleges as follows:

PARTIES

1. Hans Fastre ("Hans") is a deceased person. He died on August 29, 2025, at the age of 57 while in custody at Weber County Jail.

2. Finn Fastre ("Finn") and Jason Fastre ("Jason") are the natural children of Hans. At all relevant times hereto has been, both individuals reside in Utah.

3. Jason and Finn Fastre are the personal representatives of the Estate of Hans Fastre (the "Estate"). The Estate is the one of the plaintiffs in this matter, by and through Jason and Finn. They assert these claims pursuant to Utah Code Ann. § 78B-3-106 (allowing suits for wrongful death by heirs or personal representative(s)) and § 78B-3-107 (survival of actions).

4. Defendant Weber County is a county in the State of Utah organized and existing pursuant to Utah law. At all relevant times herein, Weber County was the owner, operator, and/or administrator of the Weber County Jail ("Jail").

5. Defendants Ashton Olsen ("Olsen") and Braydon Apple ("Apple") are employees of Weber County and are collectively referred to herein as "Arresting Officers." They are being sued in their official and personal capacities. Upon information and belief, they are both domiciled in Weber County, Utah.

6. Defendants Danielle Rochell, Kylie Kohler, Faith Vital, Ashley Wilson, Ashlyn McGlone, Madyson Foreman, Charles Sichz, Bodee Bowcut, Cody Williamson, Cayden Charley, Avery Wells, Beau Brown, Mathew Lecavalier, Michael Clegg, Bonnie Vital, and Emma Neiderhouser are employees of Weber County and are collectively referred to herein as "Weber County Jail and Medical Staff." They are being sued in their official and personal capacities. Upon information and belief, they are all domiciled in Weber County, Utah.

7. Weber County, Arresting Officers, and Weber County Jail and Medical Staff are collectively referred to herein as "Defendants."

8. DOES 1-20 are persons or entities who may share in the liability for Hans's death, but whose names and identities have not yet been ascertained by plaintiff. Plaintiff prays the

7. Weber County, Arresting Officers, and Weber County Jail and Medical Staff are collectively referred to herein as "Defendants."

8. DOES 1-20 are persons or entities who may share in the liability for Hans's death, but whose names and identities have not yet been ascertained by plaintiff. Plaintiff prays the Court for leave to amend this complaint when the true names and identities of any such defendants are ascertained through discovery.

JURISDICTION AND VENUE

9. This court has subject-matter jurisdiction under 28 U.S.C. §§ 1331 and 1343 because plaintiff's claims raise a federal civil rights question pursuant to 42 U.S.C. § 1983.

10. Venue is proper in this court under 28 U.S.C. § 1391 because all defendants reside in Utah, and plaintiff's claims herein arise from acts occurring in Weber County, State of Utah.

11. Under 42 U.S.C. § 1988(b), the Court has the authority to award reasonable costs and attorney fees to the prevailing party for claims brought under 42 U.S.C. § 1983.

GENERAL ALLEGATIONS

Arrest and Booking on August 28, 2025

12. Prior to his death, Hans suffered from chronic alcoholism and had struggled with alcohol addiction.

13. On August 28, 2025, Deputy Ashton Olson initiated a traffic stop on a dark colored sedan driven by Hans.

14. Deputy Olsen immediately noted that Hans's eyes were glossy and watery, his speech was slow, and he could not provide his own address.

15. Deputy Olsen then performed a records query for Hans's driver's license and learned that it had been revoked due to a prior DUI arrest in Colorado.

16. Deputy Olsen therefore performed various Standardized Field Sobriety Tests in which Hans performed poorly. He noted that Hans was unsteady on his feet and smelled strongly of alcohol. An inventory search of Hans's vehicle performed by Deputy Olsen also revealed two cups containing alcohol.

17. Deputy Olsen administered a breathalyzer, which recorded Hans's Blood Alcohol Level at .325, indicating severe alcohol poisoning and a need for immediate professional medical attention.

16. Deputy Olsen therefore performed various Standardized Field Sobriety Tests in which Hans performed poorly. He noted that Hans was unsteady on his feet and smelled strongly of alcohol. An inventory search of Hans's vehicle performed by Deputy Olsen also revealed two cups containing alcohol.

17. Deputy Olsen administered a breathalyzer, which recorded Hans's Blood Alcohol Level at .325, indicating severe alcohol poisoning and a need for immediate professional medical attention.

18. Deputy Braydon Apple was asked to assist with the traffic stop and observed Hans "shaking and sweating profusely." (Narrative Report.)

19. Deputy Apple attempted to ask Hans questions, but "he seemed very nervous and could not formulate any answer completely." (Narrative Report.)

20. Deputy Apple could smell the odor of a consumed alcoholic beverage emanating from the car. (Narrative Report.)

21. Deputy Apple also noted Hans's .325 blood alcohol level.

22. Despite having a dangerously high blood alcohol level, requiring immediate professional medical attention, neither Olsen nor Apple took Hans to an emergency room or medical treatment facility. Instead, they transported him directly to the Jail's booking area.

23. At the time of his booking, Jail and Medical Staff noted Hans's dangerously high blood alcohol level.

24. Hans was booked into the Jail by Deputy M. Turnbow, was searched by Deputy Beau Brown, and was released by Deputy T. Barker. Based on Hans's physical condition and smell, these deputies knew or should have known that Hans was dangerously intoxicated and in need of immediate medical attention for him.

25. Rather than have Hans transported to a hospital for medical treatment or providing emergent treatment at the Jail, the Medical Staff at the Jail merely prescribed Hans chlordiazepoxide ("Librium"), a drug known to assist with the prevention of alcohol withdrawal symptoms, showing that jail staff were aware of Hans's immediate and serious medical need.

26. Jail Staff housed Hans in Medical Cell 6 because of his high blood alcohol content. Hans shared the cell with Alonzo Hopkin ("Hopkin").

27. Staff recorded Hans as calm, cooperative, and intoxicated during his placement into Medical Cell 6.

28. Hans subsequently developed alcohol withdrawal symptoms at the Jail.

29. Upon information and belief, after his booking, Hans did not receive proper administration of the prescribed Librium; and/or his condition was not monitored, or inadequately monitored, by Jail Staff.

35. Receiving no response, Hopkin continued to push the intercom button multiple times.

Hans Exhibits Obvious Symptoms of Alcohol Withdrawal on August 29, 2025

36. At 7:47, Hopkin was frustrated with the lack of response, and returned to his bed, placing his blanket over his body with his back to Hans.

37. At 7:51, Hopkin got up off his bed, pressed the intercom for help again, and continued to look over at Hans.

38. Again receiving no assistance, Hopkin stepped away from the intercom, sat on his bed, and pulled the blankets over himself again while laying on his right side.

39. At 7:55, Hopkin got up off his bed and tried to use the intercom another time. He then began to slap the inside door/window panel to get attention from any Jail Staff. He continued to look through the window for any staff member that could assist.

40. It was only after these repeated attempts to call for help, occurring over the span of ten minutes, that Hopkin was able to get the attention of Corrections Assistant Danielle Rochell ("Rochell").

41. Upon information and belief, Rochell was or should have been available to respond to Hopkin's calls for help, but through willful neglect or negligence chose to ignore Hopkin's calls.

The Jail's Delayed Response and Lifesaving Efforts

42. At 7:56 p.m., Rochell approached Medical Cell 6 and noticed Hans's face was a blueish-purple color, his hands and feet were pale, and he showed no signs of breathing or consciousness. Rochell then called out for medical aid and assistance and sought assistance from two nurses in the area, Ashley Wilson and Emma Neiderhouser.

30. Throughout Hans's detention, he was monitored by camera and should have been visible to Jail Staff.

31. According to Hans's cellmate Hopkin, at around 12:00 p.m. on August 29, 2025, Hans was talking, moving around and acting normally. Hopkin had a conversation with Hans regarding Hans's concern about the care of his dog now that he was in jail.

32. At approximately 5:45 p.m., Hans fell asleep.

33. Around 7:45 p.m., Hopkin heard Hans take a deep breath, then saw him clench his fists to his chest and begin shaking.

34. At 7:51, Hopkin got up off his bed, pressed the intercom button, and pounded on the Lexan glass door to get the attention of Jail Staff.

43. Upon information and belief, Nurses Wilson and Neiderhouser were or should have been available to provide care for Hans, but through willful neglect or negligence did not respond to calls for help from Hopkin.

The Jail's Delayed Response and Lifesaving Efforts

42. At 7:56 p.m., Rochell approached Medical Cell 6 and noticed Hans's face was a blueish-purple color, his hands and feet were pale, and he showed no signs of breathing or consciousness. Rochell then called out for medical aid and assistance and sought assistance from two nurses in the area, Ashley Wilson and Emma Neiderhouser.

43. Upon information and belief, Nurses Wilson and Neiderhouser were or should have been available to provide care for Hans, but through willful neglect or negligence did not respond to calls for help from Hopkin.

44. It was not until 7:57 p.m. that nurses Wilson and Neiderhouser, along with a Weber County Jail Corrections Officer, Deputy Charles Sichz ("Sichz"), arrived at the cell.

45. At the time that Deputy Sichz arrived at Hans's cell, nurses had not taken Hans's pulse, nor applied any life saving measures. Rather, Deputy Sichz is noted as hearing Nurse Wilson state that Hans had "a death rattle" indicating a presumption that Hans was deceased when he was not. (*See* Sichz Narrative Report, pp. 8-9.) Only after Deputy Sichz began performing a sternum rub did the Jail Nurses begin providing life saving intervention measures.

46. At 7:58 p.m., more than seven Weber County Jail Corrections Officers arrived at the cell, including Deputies Bodee Bowcut, Cody Williamson, Matthew LeCavalier, Beau Brown, and Michael Clegg, and Sergeants James Briel and James Clark

47. The Jail Staff and nurses claim to have tried to perform lifesaving efforts, including a sternum rub, CPR Chest Compressions, administering Narcan, and using an Automated External Defibrillator (AED).

48. Ogden City Fire Personnel took over lifesaving efforts at 8:08 p.m. and administered an additional round of AED on Hans three times from 8:08 p.m. to 8:18 p.m.

49. At 8:20 Hans was removed from the cement floor and placed onto a gurney.

50. At 8:21 Hans was rolled away to begin transport to McKay-Dee Hospital.

51. At McKay-Dee Hospital, Hans was placed under the care of Dr. Joel Taylor, who continued lifesaving efforts until 8:45 p.m., where Hans was subsequently declared deceased due to cardiac arrest and shock, known complications of alcohol poisoning and withdrawal.

Prayer for Relief

Plaintiffs pray for judgment against Defendants as follows:

1. For all damages that Plaintiffs are entitled to and that are reasonable in the circumstances;
2. For economic damages in such amount as will be proven at trial;
3. For non-economic damages in such amount as will be proven at trial;
4. For non-economic damages specifically for the pain and suffering that Hans experienced from the time of Defendants' wrongdoing to the time of his death;
5. For reasonable attorneys' fees and experts' fees pursuant to 42 U.S.C. § 1988;
6. For pre- and post-judgment interest;
7. For punitive damages against individual Defendants, because individuals' actions are the result of willful and malicious or intentionally fraudulent conduct, or conduct that manifests a knowing and reckless indifference toward, and disregard of, the rights of others; and
8. For court costs.

Jury Demand

Plaintiff demands a trial by jury for all issues so triable.

DATED this 6th day of May 2026.

BURBIDGE | MITCHELL

By: /s/ Richard D. Burbidge
Richard D. Burbidge
Attorneys for Plaintiffs

First Cause of Action

42 U.S.C. § 1983 (Monell—policy and custom)

(Against Weber County)

52. Plaintiffs incorporate all the preceding allegations.

53. Weber County (specifically, Weber County Jail) had an official policy and an informal custom amounting to a widespread practice that had a direct causal link to Hans's death and that was enacted and maintained with deliberate indifference to an almost inevitable violation of the Fourteenth Amendment.

PRAYER FOR RELIEF

Plaintiffs pray for judgment against Defendants as follows:

1. For all damages that Plaintiffs are entitled to and that are reasonable in the circumstances;
2. For economic damages in such amount as will be proven at trial;
3. For non-economic damages in such amount as will be proven at trial;
4. For non-economic damages specifically for the pain and suffering that Hans experienced from the time of Defendants' wrongdoing to the time of his death;
5. For reasonable attorneys' fees and experts' fees pursuant to 42 U.S.C. § 1988;
6. For pre- and post-judgment interest;
7. For punitive damages against individual Defendants, because individuals' actions are the result of willful and malicious or intentionally fraudulent conduct, or conduct that manifests a knowing and reckless indifference toward, and disregard of, the rights of others; and
8. For court costs.

Prayer for Relief

Plaintiffs pray for judgment against Defendants as follows:

JURY DEMAND

1. For all damages that Plaintiffs are entitled to and that are reasonable in the circumstances;
Plaintiff demands a trial by jury for all issues so triable.
2. For economic damages in such amount as will be proven at trial;
DATED this 6th day of May 2026. Respectfully submitted,
3. For non-economic damages in such amount as will be proven at trial;
BURBIDGE | MITCHELL
4. For non-economic damages specifically for the pain and suffering that Hans experienced from the time of Defendants' wrongdoing to the time of his death;
By: /s/ Richard D. Burbidge
Richard D. Burbidge
Attorneys for Plaintiffs
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Jury Demand

Plaintiff demands a trial by jury for all issues so triable.

DATED this 6th day of May 2026.

BURBIDGE | MITCHELL

By: /s/ Richard D. Burbidge
Richard D. Burbidge
Attorneys for Plaintiffs